

STATE OF NEW YORK

5024--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 11, 2025

Introduced by M. of A. JACOBSON -- read once and referred to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to directing the department of transportation and certain public authorities to study certain bridges spanning bodies of water connected to deep water ports in the state to determine whether such bridges have the structural integrity to withstand an impact from a large vessel; and providing for the repeal of such provisions upon the expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. 1. The Department of Transportation, the Bridge Authority,
2 the Triborough Bridge and Tunnel Authority, the Thruway Authority, and
3 the Port Authority of New York and New Jersey, as applicable, shall each
4 conduct a study to determine the ability of certain bridges in the state
5 to withstand an impact to the support structures of such bridges from
6 large ships, including but not limited to, cargo vessels, oil tankers,
7 and passenger ships. Upon the conclusion of each such study, the commis-
8 sioner and the public authorities shall each prepare and issue a compre-
9 hensive report of their study findings and recommendations for improve-
10 ments to each bridge, if any.
- 11 a. The Department of Transportation shall study the following bridges:
12 i. Dunn Memorial Bridge; and
13 ii. Patroon Island Bridge.
- 14 b. The Bridge Authority shall study the following bridges:
15 i. Bear Mountain Bridge;
16 ii. Newburgh-Beacon Bridge;
17 iii. Mid-Hudson Bridge;
18 iv. Kingston-Rhinecliff Bridge;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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- 1 v. Rip Van Winkle Bridge; and
2 vi. Walkway over the Hudson Pedestrian Bridge.
3 c. The Triborough Bridge and Tunnel Authority shall study the follow-
4 ing bridges:
5 i. Bronx-Whitestone Bridge;
6 ii. Cross Bay Veterans Memorial Bridge;
7 iii. Henry Hudson Bridge;
8 iv. Marine Parkway-Gil Hodges Memorial Bridge;
9 v. Robert F. Kennedy Bridge;
10 vi. Throgs Neck Bridge; and
11 vii. Verrazzano-Narrows Bridge.
12 d. The Thruway Authority shall study the following bridges:
13 i. Governor Mario M. Cuomo Bridge; and
14 ii. Castleton-on-Hudson Bridge.
15 e. The Port Authority of New York and New Jersey shall study the
16 following bridges:
17 i. George Washington Bridge;
18 ii. Bayonne Bridge;
19 iii. Goethals Bridge; and
20 iv. Outerbridge Crossing Bridge.
21 2. Each such study shall include, at a minimum, an evaluation of the
22 following for each bridge:
23 a. the age of the bridge;
24 b. the number and type of vessels traversing the waters below the
25 bridge annually;
26 c. the current condition of the bridge;
27 d. any known or newly discovered chronic issue or problem with the
28 bridge;
29 e. the type, size, and construction of the support structures of the
30 bridge;
31 f. the type, size and construction of any barriers surrounding the
32 base of the support structures of the bridge and the distance between
33 such surrounding structures and the water channels occupied by vessels;
34 g. the width between the support structures of the bridge;
35 h. the height of the bridge;
36 i. the topography near the bridge, including but not limited to, sand
37 bars, shallows, and cliffs;
38 j. the area a vessel may safely access during a maneuver to avoid the
39 bridge in the event of a loss of power or propulsion or other emergency;
40 and
41 k. any other matters the commissioner or public authorities, as appli-
42 cable, deem necessary.

43 § 2. The reports required by this act shall be submitted to the gover-
44 nor, the speaker of the assembly, and the temporary president of the
45 senate no later than January 1, 2028. Each report shall include the
46 findings, conclusions, and recommendations of the commissioner or public
47 authorities, as applicable. Each report shall also be published on the
48 website of the Department of Transportation, the Bridge Authority, the
49 Triborough Bridge and Tunnel Authority, the Thruway Authority, and the
50 Port Authority of New York and New Jersey, as applicable, no later than
51 one month after it is completed.

52 § 3. The commissioner and the public authorities, as applicable, may
53 consult with any additional entities such commissioner or public author-
54 ities, as applicable, deem necessary to conducting the studies required
55 by this act.

§ 4. For the purposes of this act, the following terms shall have the following meanings:

1. "Bridge Authority" shall mean the New York state bridge authority created pursuant to section five hundred twenty-seven of the public authorities law;

2. "Commissioner" shall mean the commissioner of transportation of the state of New York;

3. "Department of Transportation" shall mean the department of transportation of the state of New York;

4. "Metropolitan Transportation Authority" shall mean the corporation created by section twelve hundred sixty-three of the public authorities law;

5. "Port Authority of New York and New Jersey" shall mean that body corporate and politic created pursuant to article three of chapter one hundred fifty-four of the laws of nineteen hundred twenty-one, and designated as "The Port Authority of New York and New Jersey" by such chapter;

6. "Public Authorities" shall mean the Bridge Authority, the Triborough Bridge and Tunnel Authority, the Thruway Authority, and the Port Authority of New York and New Jersey;

7. "Thruway Authority" shall mean the New York state thruway authority, a body corporate and politic constituting a public corporation created and constituted pursuant to title nine of article two of the public authorities law; and

8. "Triborough Bridge and Tunnel Authority" shall mean the corporation organized pursuant to section five hundred fifty-two of the public authorities law.

§ 5. This act shall take effect immediately and shall expire and be deemed repealed April 1, 2028; provided, however, that the port authority of New York and New Jersey shall not be subject to the provisions of this act until the date of enactment into law by the state of New Jersey of legislation having an identical effect with this act, but if the state of New Jersey shall have already enacted such legislation the provisions of this act shall apply to the port authority of New York and New Jersey immediately; and provided further, that the executive director of the Port Authority of New York and New Jersey shall notify the legislative bill drafting commission upon the occurrence of the enactment of the legislation provided for in this act in order that the commission may maintain an accurate and timely effective data base of the official text of laws of the state of New York in furtherance of effectuating the provisions of section 44 of the legislative law and section 70-b of the public officers law.